

|                                                                                |  |                   |  |                                            |  |                                            |  |
|--------------------------------------------------------------------------------|--|-------------------|--|--------------------------------------------|--|--------------------------------------------|--|
| <b>AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT</b>                      |  |                   |  | 1. CONTRACT ID CODE                        |  | PAGE OF PAGES                              |  |
| 2. AMENDMENT/MODIFICATION NUMBER                                               |  | 3. EFFECTIVE DATE |  | 4. REQUISITION/PURCHASE REQUISITION NUMBER |  | 5. PROJECT NUMBER (If applicable)          |  |
| 6. ISSUED BY                                                                   |  | CODE              |  | 7. ADMINISTERED BY (If other than Item 6)  |  | CODE                                       |  |
| 8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code) |  |                   |  | (X)                                        |  | 9A. AMENDMENT OF SOLICITATION NUMBER       |  |
|                                                                                |  |                   |  | <input type="checkbox"/>                   |  | 9B. DATED (SEE ITEM 11)                    |  |
|                                                                                |  |                   |  | <input type="checkbox"/>                   |  | 10A. MODIFICATION OF CONTRACT/ORDER NUMBER |  |
|                                                                                |  |                   |  | <input type="checkbox"/>                   |  | 10B. DATED (SEE ITEM 13)                   |  |
| CODE                                                                           |  | FACILITY CODE     |  |                                            |  |                                            |  |

### 11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☐ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☐ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:

(a) By completing items 8 and 15, and returning \_\_\_\_\_ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

### 12. ACCOUNTING AND APPROPRIATION DATA (If required)

### 13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.

|                          |                                                                                                                                                                                                                       |
|--------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CHECK ONE                | A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.                                                                   |
| <input type="checkbox"/> |                                                                                                                                                                                                                       |
| <input type="checkbox"/> | B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b). |
| <input type="checkbox"/> | C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:                                                                                                                                              |
| <input type="checkbox"/> | D. OTHER (Specify type of modification and authority)                                                                                                                                                                 |

**E. IMPORTANT:** Contractor ☐ is not ☐ is required to sign this document and return \_\_\_\_\_ copies to the issuing office.

### 14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

|                                                                                                                                  |  |                                                                                                                            |  |
|----------------------------------------------------------------------------------------------------------------------------------|--|----------------------------------------------------------------------------------------------------------------------------|--|
| 15A. NAME AND TITLE OF SIGNER (Type or print)                                                                                    |  | 16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)                                                                 |  |
| 15B. CONTRACTOR/OFFEROR                                                                                                          |  | 16B. UNITED STATES OF AMERICA                                                                                              |  |
| 15C. DATE SIGNED                                                                                                                 |  | 16C. DATE SIGNED                                                                                                           |  |
| <br>(Signature of person authorized to sign) |  | <br>(Signature of Contracting Officer) |  |

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SECTION SF 30 BLOCK 14 CONTINUATION PAGE

## SUMMARY OF CHANGES

**Block 14 (Description of Amendment/Modification):** SOLICITATION NUMBER N40085-26-R-0005, DESIGN-BID-BUILD (DBB) P1112 B72 RESILIENCY IMPROVEMENTS, PORTSMOUTH NAVAL SHIPYARD (PNSY), KITTERY, MAINE

The proposal due date of 14 April 2026 NLT 2:00 PM EDT has not been extended.

The Amendment is issued to incorporate the following:

1. Update the Solicitation to reflect NAICS Code 236210 - Industrial Building Construction.
2. Update Instructions to Offerors section 4.1 SITE VISIT.

### Section 00 21 00 - Instructions

**Miscellaneous text in this section has been modified to:**

#### INSTRUCTIONS TO OFFERORS

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#### 1. GENERAL

##### 1.1 GENERAL OVERVIEW OF PROCUREMENT PROCESS

This solicitation is being issued as UNRESTRICTED FOR FULL AND OPEN COMPETITION.

The NAICS Code for this procurement is **236210** and the Size Standard is \$45,000,000.

This acquisition will be advertised utilizing FAR Part 15 - Contracting by Negotiation resulting in a Firm-Fixed Price (FFP) Contract for Construction Services.

In accordance with DFARS 236.204, the estimated magnitude of construction is between \$25,000,000 and \$100,000,000.

##### 1.2 GENERAL OVERVIEW OF THE CONTRACT

The general intent of this solicitation is to award a Firm-Fixed Price (FFP) Construction Contract for Design-Bid-Build (DBB), P1112 B72 Resiliency Improvements, Portsmouth Naval Shipyard (PNSY), Kittery, Maine.

This project provides a desalination facility with a non-potable process water production capacity of 400,000 gallons per day, with expected average daily need ranging between 250,000 to 300,000 gallons per day. Produced water will be pumped to existing condensate receiver tank (base bid) and will be interconnected with existing south and north cooling towers piping (bid option).

## **2. BASIS FOR AWARD**

The Government reserves the right to eliminate from consideration for award any or all offers at any time prior to award of the contract; to negotiate with offerors in the competitive range; and to award the contract to the offeror submitting the proposal determined to represent the best value--the proposal most advantageous to the Government, price and other factors considered.

The Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a)). The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. In addition, if the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

The tradeoff process is selected as appropriate for this acquisition. The Government considers it to be in its best interest to allow consideration of award to other than the lowest priced offeror or other than the highest technically rated offeror.

All technical factors, when combined, are of equal importance to the performance confidence assessment (past performance) rating; and all technical factors and the performance confidence assessment (past performance) rating, when combined, are approximately equal to price.

Any proposal found to have a Deficiency in meeting the stated solicitation requirements or performance objectives will be considered ineligible for award, unless the Deficiency is corrected through discussions. An Unacceptable rating in any of the non-cost/price factors will result in an overall rating of "Unacceptable" for the non-cost/price factors, unless corrected through discussions. Proposals may be found to have either a Significant Weakness or multiple Weaknesses that impact either the individual factor rating or the overall rating for the proposal.

## **3. EVALUATION FACTORS FOR AWARD**

The solicitation requires the evaluation of price and the following non-cost/price factors:

- Factor 1 - Corporate Experience
- Factor 2 - Management Approach and Schedule
- Factor 3 - Safety
- Factor 4 - Past Performance
- Factor 5 - Small Business Utilization and Participation

The distinction between Corporate Experience and Past Performance is that Corporate Experience pertains to the volume of work completed by a contractor that are comparable to the types of work described under the definition of recent, relevant projects, in terms of size, scope, and complexity. Past Performance pertains to both the relevance of recent efforts and how well a contractor has performed on the contracts.

The relative order of importance of the non-cost/price evaluation factors is the technical factors (Factors 1, 2, 3, and 5) are of equal importance to each other and, when combined, are equal in importance to the past performance evaluation/performance confidence assessment factor (Factor 4). When the proposal is evaluated as a whole, the technical factors and past performance/performance confidence assessment factor combined (i.e., the non-cost /price evaluation factors) are approximately equal to price.

The importance of price will increase if the offerors' non-cost/price proposals are considered essentially equal in terms of overall quality, or if price is so high as to significantly diminish the value of a non-cost/price proposal's superiority to the Government. Award will be made to the responsible offeror whose offer conforms to the solicitation and represents the best value to the Government, price and non-price factors considered.

Basis of Evaluation and Submittal Requirements for Each Factor.

(a) Price:

(1) Solicitation Submittal Requirements:

The Offeror shall submit one (1) electronic copy via PIEE, to include the submittal requirements identified below. The price and non-price proposals shall be submitted in separate files and submitted in Portable Document Format (PDF). In addition, non-price/technical information included in the price proposal will not be considered; likewise, price information included in the non-price/technical proposal will not be considered. All required proposal documents shall be submitted in accordance with FAR 15.208.

All submissions shall include the following:

1. Executed SF1442. Offeror shall insert its company name and address in Block #14, telephone number in Block #15, acknowledge all amendments in Block #19 (if applicable), name and title of person authorized to sign in Block #20A, signature in Block #20B, and offer date in Block #20C of the SF1442. In addition, the Offeror shall provide a cover page with solicitation number, solicitation title, Offeror name, address, phone number, fax

number, Unique Identifier Number (UEI), CAGE code, Federal Tax ID number, CMMC unique identifier (CMMC UID) in accordance with DFARS 252.204-7025, Point of Contact (POC), POC phone number, and POC email address with its proposal.

2. Completed Price Proposal Form. The Offeror is required to submit a complete Price Proposal Form that includes completion of all contract line items numbers (CLINs). Pricing information is not required to be completed under Section 00 10 00 - Solicitation Contract Form in SF 1442.

3. Bid Bond (SF-24). Offeror shall submit a bid bond (SF-24) in the amount of 20% of total project bid price for the project or \$3M, whichever amount is less. The bid bond shall be in the name of the Offeror identified on the SF1442.

4. System for Award Management (SAM) registration. Offeror shall provide a copy of Representation and Certifications and proof of registration in System for Award Management (SAM) and ensure current registration on the SAM Website, [www.sam.gov](http://www.sam.gov), including Annual Representations and Certifications are complete and updated for this procurement. If a Representation or Certification required by Section 00 45 00 of the RFP is not provided in SAM, include the representation or certification in your price proposal. The Contracting Officer and/or Contract Specialist will verify the Offeror's registration in SAM only at time of submission of an offer and at the time of contract award, unless an exemption applies under FAR 4.1102 (a).

5. FAPIIS. Offeror shall ensure Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete, as required by FAR 52.209-7, Information Regarding Responsibility Matters.

6. VETS-4212 registration. Confirmation of filing of Veterans' Employment and Training (VETS) VETS-4212 for the 2024/2025 filing cycle, if the Offeror is required to submit. Offeror shall ensure a current VETS-4212 report has been submitted to the Department of Labor (DOL) website, <http://www.dol.gov/vets/vets4212.htm>. An email confirmation of submission can be requested and received by the Offeror from the DOL website and submitted in the price proposal. If the Offeror is not required to submit a report to VETS-4212, include a brief statement and justification explaining why the Offeror is not required to submit a report. Visit the VETS-4212 website for details concerning if your company is required to submit a VETS-4212 report and to request email confirmation of submission.

#### 7. SMALL BUSINESS SUBCONTRACTING PLAN (REFERENCE FAR 52.219-9 ALT II AND DFARS 252.219-7003)

In accordance with FAR 19.7, all other than small businesses shall submit a Small Business Subcontracting Plan (SBSP) utilizing the template provided as Attachment G. Acceptability of the SBSP will be considered a responsibility matter. The SBSP will not be evaluated or rated by the SSEB but reviewed by a Small Business Professional/Authorized Representative and the Contracting Officer for acceptability. The SBSP shall be negotiated and/or accepted within the time specified by the Contracting Officer. Failure to negotiate an acceptable subcontracting plan within the time limit prescribed by the Contracting Officer will render the Offeror ineligible for award of the contract. The SBSP will be incorporated into the resulting contract.

NAVFAC's command-wide small business subcontracting targets are shown below. These may be higher or lower than percentages that would represent realistic, challenging, small business subcontracting goals for this acquisition consistent with efficient and effective performance of the contract. These targets are based on a percentage of total planned subcontract dollars.

Small Business (SB) - 40%  
Small Disadvantaged Business (SDB) - 5%  
HUBZone SB - 3%  
Woman-Owned Small Business (WOSB) - 9%  
Veteran-Owned Small Business (VOSB) - 3%  
Service-Disabled Veteran-Owned Small Business (SDVOSB) - 3%

The SBSP shall be consistent with the commitments offered in the Small Business Utilization and Participation factor. In accordance with DFARS 215.304(c)(i), when an evaluation assesses the extent that small businesses are specifically identified in proposals, those small businesses considered in the evaluation shall be listed in the SBSP.

Please note that SBSP goals and the participation rates provided in the Small Business Participation Commitment Document (SBPCD) WILL NOT be the same. The participation rates within the SBPCD are provided as percentages of the total contract value; subcontract plan goals are provided as a percentage of planned subcontracting dollars. While the percentages will differ, the types of products/services identified in the SBSP, should be the same as those products/services identified in the SBPCD. Likewise, the planned small business subcontract dollars in the SBSP will be equal to (or in some cases greater than) the extent of small business participation identified in the SBPCD.

8. Bank Reference. One (1) Signed Bank Reference demonstrating adequate financial resources. If Offeror's firm has a line of credit, provide information on how many figures the Offeror can borrow against the line of credit (i.e. medium 6 figures - exact line of credit is not required).

9. Financial Statements. The Offeror shall provide the latest three (3) complete fiscal year financial statements for the prime contractor, certified by an independent accounting firm, if practicable, or signed by an authorized officer of the organization. Submit evidence of availability of working /operating capital, which will be used for the performance of the resultant contract. For Joint Venture arrangements, submit the latest three complete fiscal year financial statements for each company in the Joint Venture and discuss the financial responsibilities among the companies.

10. Facilities and Equipment. Provide a description of Offeror's facilities and equipment.

11. Other Work. Provide a list of Offeror's other work presently under contract.

#### (2) Basis of Evaluation:

The Government will evaluate price based on the total price. Total price consists of the basic requirements and all option items (see attached Price Proposal Form). The Government intends to evaluate all options and has included the provision FAR 52.217-5, Evaluation of Options (JUL 1990) in

Section 00 21 00 of the solicitation. In accordance with FAR 52.217-5, evaluation of options will not obligate the Government to exercise the option (s). Analysis will be performed by one or more of the following techniques to ensure a fair and reasonable price:

- (i) Comparison of proposed prices received in response to the RFP.
- (ii) Comparison of proposed prices with the IGCE.
- (iii) Comparison of proposed prices with available historical information.
- (iv) Comparison of market survey results.

Although required to be submitted with Offeror's price proposal, under the "Solicitation Submittal Requirements," Items 3 through 11 above will not be evaluated as part of the price proposal. This information will be utilized by the Government in the responsibility determination and for considering responsiveness to the solicitation requirements.

(b) Non-cost/price Factors:

All submissions shall include the following:

The Offeror shall submit one (1) electronic copy via PIEE of the solicitation submittal requirements identified below. The Price and Non-price proposals shall be submitted in separate files and submitted in Portable Document Format (PDF). In addition, non-price/technical information included in the price proposal will not be considered; likewise, price information included in the non-price/technical proposal will not be considered. All required proposal documents shall be submitted in accordance with FAR 15.208.

Offeror shall provide a cover page with solicitation number, solicitation title, Offeror name, address, phone number, fax number, Unique Entity Identifier (UEI), CAGE code, Federal Tax ID number, Point of Contact (POC), POC phone number, and POC email address with its proposal.

Refer to individual factors for page limitations. Information submitted beyond any of the page limits below will not be considered.

Note: If proposing as a Joint-Venture (JV), the offeror must submit the POC, UEI, and CAGE Code for each JV partner.

**Factor 1, Corporate Experience:**

(i) Solicitation Submittal Requirements:

Submit a minimum of two (2) up to a maximum of five (5) relevant construction projects for the Offeror that best demonstrate your experience on relevant projects (similar in Size, Scope, and Complexity as defined below).

Experience shall be that of the Offeror performed as the Prime Contractor. Experience of proposed subcontractors will not be considered. Furthermore, experience of the offeror while working as a subcontractor will not be considered.

For purposes of this evaluation, a relevant project is further defined as:

**Size:** A final construction cost of \$15,000,000 or greater. Final construction cost is defined as the total price paid by the customer for the construction services, including original contract award amount and any modifications executed during performance.

**Scope:** Renovation of or New Construction of either a Water Treatment Facility, Desalinization Facility and/or Steam Generating Facility.

**Complexity:** Each project submitted does not require demonstrated experience with all of the following Complexity elements, but, collectively, submitted relevant projects must demonstrate experience with all elements, while meeting the above Size and Scope relevancy requirements:

- a) Experience with phased construction related to the following: multi-stage industrial processes, water treatment plants, desalination facilities, steam generating facilities, pumping stations, or similar.
- b) Experience with construction work in existing utility plants or industrial buildings where facility operations remain active and with limited available on-site construction laydown space.

Notes:

- Complexity will only be satisfied on projects that are considered relevant in terms of Size and Scope, as defined above.
- A project must meet Size and Scope to be relevant. However, Offerors are also required to collectively demonstrate experience with the Complexity elements within the submitted relevant projects, as detailed above.

Projects submitted for the offeror shall have been completed within the past ten (10) years from the date of issuance of this RFP. Projects which are not complete as of the date of issuance of this RFP will be considered "Not Relevant." Additionally, projects completed prior to ten (10) years from the date of issuance of this RFP will be considered "Not Relevant."

For all submitted projects, ensure that the project description clearly addresses how the project meets the required timeframe as well as the above Size, Scope, and Complexity requirements and clearly provides the final construction cost. **The absence of any such information or information that does not clearly address the requirements may result in the project being considered Not Relevant, which could result in a rating of UNACCEPTABLE for this Factor which renders the proposal ineligible for award.**

A project is defined as a construction project performed under a single task order or contract. For multiple award and indefinite delivery/indefinite quantity type contracts, the contract as a whole shall not be submitted as a project; rather, offerors shall submit the work performed under a task order as a project. The submission of a multiple award and/or indefinite delivery/indefinite quantity type contract as a whole will be considered Not Relevant.

The attached Construction Experience Project Data Sheet (Attachment C) is MANDATORY and SHALL be used to submit project information. Except as specifically requested, the Government will not consider information submitted in addition to this form nor will the Government consider submissions via any other medium. Individual blocks on this form may be expanded; however, total length for each project data sheet shall not exceed two (2) pages.

If the Offeror is a Joint Venture (JV), relevant project experience should be submitted for projects completed by the Joint Venture entity. If the Joint Venture does not have shared experience, projects may be submitted for the Joint Venture members. Offerors may submit experience where a member of the JV performed as a JV with another entity but must clearly demonstrate how its work on that project met Size, Scope, and Complexity as defined above.

If a project was performed by a JV, and not all partners from that JV are on the JV proposed for this contract, the Offeror shall clearly demonstrate what portion of the work was performed by the JV member offering on this contract and shall not include work performed by the JV as a whole. The JV member proposed for this contract shall specifically address field work performed by that JV member including field staffing and direct field work oversight. The JV member proposed for this contract shall also address home office management performed by that JV member including the number /percentage of employees provided for the overall contract by the JV members as well as the overall percentage of work performed by the JV member. The Offeror shall also submit a SIGNED copy of the Joint Venture agreement indicating the proposed participation of each Joint Venture member. For 8(a) Mentor-Protege Joint Ventures, the Offeror shall submit the signed and U.S. Small Business Administration (SBA) approved Mentor-Protege agreement. For Offerors who are a Joint Venture, an Offeror's proposal shall be considered ineligible for award if this information is not provided. Offerors are still limited to a total of five (5) projects combined.

Offerors that are not submitting as a JV may submit a project where it performed as a JV with another entity but must clearly demonstrate how its work on that project met Size, Scope, and Complexity as defined above or the project will be considered Not Relevant.

If an offeror is utilizing experience information of affiliates/subsidiaries/parent/LLC/LTD member companies (name is not exactly as stated on the SF1442), the proposal shall clearly demonstrate that the affiliate/subsidiary/parent firm will have meaningful involvement in order for the experience information of the affiliate/subsidiary/parent/LLC/LTD member companies to be considered. The proposal shall state specific commitments of technical resources (e.g., personnel, management, equipment) that the affiliate/subsidiary/parent/LLC/LTD member companies shall commit to the performance of this contract. In particular, the proposal shall clearly state the specific commitments of resources of the affiliate/subsidiary/parent/LLC/LTD member that will be located at the worksites and company offices in the city/area of the project. The proposal shall also describe specific roles of the affiliate/subsidiary/parent/LLC/LTD member companies in terms of the work it will either self-perform or manage on behalf of the Offeror in performance of the contract. Vague commitments to support are likely insufficient; rather, they must demonstrate intent/manner of actual performance on the contract action being solicited. The information pertaining to affiliates/subsidiaries/parent/LLC/LTD member companies must be included within Factor 1 but does not need to be included on a Project Data Sheet.

(ii) Basis of Evaluation:

The basis of evaluation will include the offeror's demonstrated experience and depth of experience in performing relevant construction projects as defined in the solicitation submittal requirements. The assessment of the offeror's relevant experience will be used as a means of evaluating the capability of the offeror to successfully meet the requirements of the RFP. The Government will only review the first five (5) projects submitted for Corporate Experience. Any projects submitted in excess of the five (5) for Corporate Experience will not be considered.

An offeror that does not submit a minimum of two (2) relevant projects, as defined above, will receive a rating of "Unacceptable" and will not be eligible for award.

Proposals that demonstrate relevant construction experience with reverse osmosis desalination plants with a production rate greater than or equal to 50,000 gallons/day may be considered more favorably.

Proposals that demonstrate relevant experience with in-water/submerged construction activities may be considered more favorably.

Proposals that demonstrate relevant experience with excavation within areas of expected/known hazardous soils and with highly variable ground water depths, such as those subject to adjacent coastal tide conditions, may be considered more favorably.

Proposals that demonstrate relevant experience with interior and exterior renovations of historic masonry buildings adhering to Secretary of the Interior's guidelines for selective demolition and renovation may be considered more favorably.

Proposals that demonstrate relevant experience with removal and abatement of hazardous materials may be considered more favorably.

Proposals that demonstrate relevant experience with both monitoring and reporting of excavations by a qualified archaeologist may be considered more favorably.

Proposals that demonstrate relevant experience with rooftop work with limited access requiring erection of temporary access and use of cranes for the rooftop work may be considered more favorably.

Proposals that demonstrate all Complexity elements within a single Relevant project may be considered more favorably.

Proposals that do not demonstrate relevant project experience for each JV member may be considered less favorably.

## **Factor 2, Management Approach and Schedule:**

### **(i) Solicitation Submittal Requirements:**

The offeror shall submit a Management Approach Narrative and Critical Path Schedule as detailed below. The narrative shall not exceed ten (10) pages. There is no page limit for the schedule.

### **Management Approach Narrative**

The narrative shall include, but is not limited to, the following:

1. Describe the proposed approach to management, for both subcontractors and your workforce, to ensure schedule adherence, early detection and correction of problems, and the execution of the base work and all options, as detailed in the RFP.
2. Describe planned self-performance and subcontracting plan, including a description of how the offeror will use lower tier subcontractors to cover the full scope of the work to include integration, testing and balancing, commissioning, and closeout. Describe strategies for self-performance and subcontracting that will provide lowest risk and best value to the Government.
3. Demonstrate understanding of the scope, major milestones, and construction schedule required to achieve the work as identified in the RFP.
4. Describe how offeror will handle technical complexities relating to:
  - a. Excavation in areas involving temporary engineered shoring in areas of congested below-grade infrastructure.
  - b. Micropile work in the immediate/close proximity to existing sub-surface utility infrastructure.
  - c. Quality assurance and quality control for below and above grade reinforced concrete, including submerged concrete work.
5. Describe how your firm will handle unforeseen problems including, but not limited to, material deliveries and any associated long lead times, subcontractor progress, weather, re-work, differing site conditions, and inspections relating to the project.
6. Describe how your firm intends to use on-site space options and methods for both material and equipment storage both on and off site.

### **Critical Path Schedule**

Provide a Critical Path Method (CPM) construction schedule that illustrates your ability to achieve the schedule and meet all the requirements of the RFP (900 calendar days, including 15 days for insurance and bond approval). For evaluation purposes, the offeror's schedule should use an estimated contract award date of or around 30 JUNE 2026. This date is for proposal purposes only and is not intended to indicate an anticipated/planned award date.

If an offeror proposes a realistic and feasible schedule that is shorter than the required duration and is selected for award, that schedule and duration will be incorporated into the award document and replace the advertised required duration.

A schedule that proposes a contract duration longer than indicated in the RFP will be rated UNACCEPTABLE and, therefore, ineligible for award.

Offeror shall provide a critical path method (CPM) schedule for execution and completion of the work to achieve the required interim and final completion milestones for the project. At a minimum, the CPM schedule shall address, but is not limited to, the following:

1. Identify major activities and milestones.
2. Shop drawings, approval, manufacturing lead times for specialized equipment and prefabricated assemblies.
3. Phased construction in an active production area.
4. Advance work which can be productive while awaiting delivery of long lead items.
5. Temporary work associated with accomplishing the permanent scope.
6. Below grade and above grade structural work, including work associated with wet wells.
7. Erection of new facilities (Pump Room B, B242 Addition).
8. Utility work and utility connections.
9. Testing and Balancing, Commissioning, Startup, and Closeout.

### **(ii) Basis of Evaluation:**

Management Approach Narrative - Offerors will be evaluated on the extent to which they demonstrate a clear understanding of the RFP's requirements in accordance with the above Solicitation Submittal Requirements. An Offeror's narrative work plan that identifies areas of risk in logistics and resource management and provides a comprehensive contingency plan that addresses mitigation of any identified risks with potential solutions may be considered more favorably than those that do not.

Critical Path Schedule - Offerors will be evaluated on the extent to which they demonstrate a clear understanding of the RFP's requirements in accordance with the above Solicitation Submittal Requirements. A schedule that proposes a realistic and feasible contract duration shorter than the required duration indicated in the RFP may be considered more favorably than those that do not.

## **Factor 3, Safety:**

### **(i) Solicitation Submittal Requirements:**

The offeror shall submit the following information: The Days Away from Work, Restricted Duty, or Job Transfer (DART) Rate; and Total Case Rate (TCR) for the specified five (5) Calendar Years (CY), as well as a safety narrative, as described further below. For a partnership or joint venture, the offeror shall submit separate DART rates and TCR for the specified five (5) CY for each contractor who is part of the partnership/joint venture; however, only one safety narrative is required. Any fatalities experienced within this 5-year timeframe must be explained in detail, to include root cause and corrective actions.

**NOTE:** DART and TCR shall not be submitted for subcontractors

1. DART Rate: Submit five (5) previous complete calendar years' [CY2025, CY2024, CY2023, CY2022, and CY2021] worth of data (not an overall average). If the offeror has no DART rate, for any year, the offeror must affirmatively state so and explain why. Should a negative trend occur above Moderate Risk levels, an acceptable/detailed explanation is required that includes any corrective actions taken for improvement.

- a. DART cases include injuries or illnesses resulting in death, days away from work, and/or restricted work or transfer to another job days beyond the day of injury/illness.
- b. Calculation of DART rate: Multiply the total number of DART cases by 200,000 and then divide by the number of employee labor hours worked.

**DART RATE = (Number of DART Incidents x 200,000)/(Total Number of Employee Labor Hours Worked)**

2. TCR Rate: Submit five (5) previous complete calendar years' [CY2025, CY2024, CY2023, CY2022, and CY2021] worth of data (not an overall average). If the offeror has no TCR rate, for any year, the offeror must affirmatively state so and explain why. Should a negative trend occur above Moderate Risk levels, an acceptable/detailed explanation is required that includes any corrective actions taken for improvement.

- a. TCR cases include injuries or illnesses resulting in death, days away from work, restricted work or transfer to another job days beyond the day of injury/illness, medical treatment beyond first aid, or loss of consciousness.
- b. Calculation of TCR rate: Multiply the total number of TCR incidents by 200,000 and then divide by the number of employee labor hours worked.

**TCR RATE = (Number of TCR Incidents x 200,000)/(Total Number of Employee Labor Hours Worked)**

3. Technical Approach to Safety: Submit a narrative that addresses the following:

- a. Describe the offeror's approach to implementing and executing a Safety Management System (SMS) including Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksites analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.
- b. Describe the evaluation process used to select potential subcontractors.
- c. Describe the processes of how the offeror will oversee safety compliance of subcontractors at all levels throughout performance of the contract (to include the offeror's own in-house workforce).
- d. The Technical Approach to Safety narrative shall be limited to two (2) pages.

4. The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

(ii) Basis of Evaluation:

The Government is seeking to determine that the offeror has consistently demonstrated a commitment to safety and that the offeror plans to properly manage and implement safety procedures for itself and its subcontractors. The evaluation will collectively consider the DART rate, TCR, Technical Approach to Safety, and other sources of information available to the Government as part of such collective evaluation. The board will evaluate the DART rates and TCR to determine if the offeror has demonstrated a history of safe work practices taking into account any negative trends and extenuating circumstances that impact the rating.

1. DART Rate: The board will evaluate trends over the last five years considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above Moderate Risk levels require the offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

- a. Missing data without an explanation is considered a Deficiency.
- b. Declining trends that push the risk levels from Moderate Risk (MR) or higher to Low Risk (LR) or Very Low Risk (VLR) may indicate a Strength.
- c. An increasing DART rate trend could be considered a Weakness (i.e. MR or better to High Risk (HR) or Extremely High Risk EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate Risk.
- d. This chart correlates the DART rate to the level of risk:



| Risk                | DART Rate        |
|---------------------|------------------|
| Very Low Risk       | Less Than 1.0    |
| Low Risk            | From 1.0 to 1.99 |
| Moderate Risk       | From 2.0 to 2.99 |
| High Risk           | From 3.0 to 4.0  |
| Extremely High Risk | Greater than 4.0 |

2. TCR Rate: The board will evaluate trends over the last five years considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above Moderate Risk levels require the offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

- a. Missing data without an explanation is considered a Deficiency.
- b. Declining trends that push the risk levels from Moderate Risk (MR) or higher to Low Risk (LR) or Very Low Risk (VLR) may indicate a Strength.
- c. An increasing TCR rate trend could be considered a Weakness (i.e. MR or better to High Risk (HR) or Extremely High Risk EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate Risk.
- d. This chart correlates the TCR rate to the level of risk:

| Risk                | TCR Rate         |
|---------------------|------------------|
| Very Low Risk       | Less Than 2.49   |
| Low Risk            | From 2.5 to 3.49 |
| Moderate Risk       | From 3.5 to 4.49 |
| High Risk           | From 4.5 to 5.99 |
| Extremely High Risk | Greater than 6.0 |

3. The Technical Approach to Safety Narrative. To determine the degree to which the offeror:

- a. Describes a viable approach to implementing and executing a Safety Management System (SMS) including Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.
- b. Describes a methodical process of evaluating subcontractor's safety performance in their selection process.
- c. Describes a logical management plan to hold themselves and their subcontractors accountable for adhering to the safety requirements of the contract.
- d. The Technical Approach to Safety narrative shall be limited to two (2) pages. Information on pages beyond this will not be considered.

4. The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

#### **Factor 4, Past Performance:**

(i) Solicitation Submittal Requirements:

Recent, relevant projects are determined within the requirements for Factor 1, Corporate Experience.

If a completed CPARS evaluation is available, it shall be submitted with the proposal. Note: submit all CPARS evaluations (interim and final) for each project. If there is not a completed CPARS evaluation, the Past Performance Questionnaire (PPQ) included in the solicitation is provided for the offeror or its team members to submit to the client for each project the offeror includes in its proposal for Factor 1 - Corporate Experience. AN OFFEROR SHALL NOT SUBMIT A PPQ WHEN A COMPLETED CPARS IS AVAILABLE.

If a CPARS evaluation is not available, ensure correct phone numbers and email addresses are provided for the client point of contact. Completed PPQs should be submitted with your proposal. If the offeror is unable to obtain a completed PPQ from a client for a project(s) before proposal closing date, the offeror should complete and submit with the proposal the first page of the PPQ (Attachment D), which will provide contract and client information for the respective project(s). Offerors should follow-up with clients/references to ensure timely submittal of questionnaires. If the client requests, questionnaires may be submitted directly to the Government's point of contact, James Godwin, via email at james.a.godwin41.civ@us.navy.mil prior to proposal closing date. Offerors shall not incorporate by reference into their proposal PPQs or CPARS previously submitted for other RFPs. However, this does not preclude the Government from utilizing previously submitted PPQ information in the past performance evaluation.

Offerors are highly encouraged to provide any information on problems encountered and the corrective actions taken on projects submitted under Factor 1 - Corporate Experience. Additionally, offerors are highly encouraged to address any adverse past performance issues. Explanations shall not exceed four (4) pages in total. Information provided beyond this page limit will not be considered.

In addition to the above, the Government may review any other sources of information for evaluating past performance. Other sources may include, but are not limited to, past performance information retrieved through the Contractor Performance Assessment Reporting System (CPARS) using all CAGE/Entity Identifier numbers of team members (partnership, joint venture, teaming arrangement, or parent company/subsidiary/affiliate) identified

in the offeror's proposal, inquiries of owner representative(s), Federal Awardee Performance and Integrity Information System (FAPIS), Electronic Subcontract Reporting System (eSRS), and any other known sources not provided by the offeror.

While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate and complete past performance information rests with the offeror.

**IMPORTANT:** It is the responsibility of the offeror to provide accurate points of contact for each identified contract and current telephone numbers and/or email addresses. Failure to provide requested data, accessible points of contact, or valid phone numbers could result in a firm being considered less qualified.

The Government reserves the right to contact references for verification or additional information. The Government's inability to contact any of the offeror's references or the references' unwillingness to provide the information requested may affect the Government's evaluation of this factor.

A copy of the blank Past Performance Questionnaire to be used for requesting client references is included as Attachment D.

(ii) Basis of Evaluation:

This evaluation focuses on the quality of performance on the relevant projects submitted under Factor 1 - Corporate Experience and past performance on other projects currently documented in known sources.

The degree to which past performance evaluations and all other past performance information reviewed by the Government (e.g., CPARS, Federal Awardee Performance and Integrity Information System (FAPIS), Electronic Subcontract Reporting System (eSRS), performance recognition documents, and information obtained from any other source) reflect a trend of satisfactory performance considering:

- A pattern of successful completion of tasks;
- A pattern of deliverables that are timely and of good quality;
- A pattern of cooperativeness and teamwork with the Government at all levels (task managers, contracting officers, auditors, etc.); and
- Recency of tasks performed that are identical to, similar to, or related to the task at hand.

The Government will consider the currency and relevance of the information, the source of the information, context of the data, and general trends in performance. This evaluation is separate and distinct from the Contracting Officer's responsibility determination. The assessment of past performance will be used as a means of evaluating the offeror's probability to successfully meet the requirements of the RFP. More relevant past performance will have more influence on the past performance confidence assessment than past performance of lesser relevance.

In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available, the offeror may not be evaluated favorably or unfavorably on past performance and will receive a Neutral Confidence rating.

**Factor 5, Small Business Utilization and Participation:**

It is the policy of the Government to provide maximum practicable opportunities in its acquisitions to Small Business (SB) concerns, including Small Disadvantaged Business (SDB), Woman-Owned Small Business (WOSB), Historically Underutilized Business Zone Small Business (HUBZone SB), Veteran-Owned Small Business (VOSB), Service-Disabled Veteran-Owned Small Business (SDVOSB), and other small business concerns. Further, it is the policy of the Government that such concerns will have the maximum practicable opportunity to participate in contract performance consistent with its efficient performance.

This Factor assesses both the historical achievements in utilizing small business concerns and the proposed small business participation commitment for this requirement. The offeror is required to demonstrate its previous commitment to SBs through its record of past utilization of SBs and the level of commitment to small business if awarded a contract under this solicitation.

(i) Solicitation Submittal Requirements:

1. **All** offerors (large, non-profits, **AND** small businesses) shall use Attachment E (Historical Small Business Utilization) to demonstrate their historical utilization of SBs. Each project submitted under Factor 1, Corporate Experience, shall be included on Attachment E. Failure to include each project submitted under Factor 1, Corporate Experience, on Attachment E, or the failure to fully complete Attachment E for each project may result in a Deficiency. Only complete Attachment E. Information provided in a different format and/or on a form created by the offeror will not be evaluated. Attachments or addendums to Attachment E will not be evaluated. Offerors are permitted to expand portions of the form, as needed, to provide sufficient response. Instructions regarding how to complete Attachment E are included at the beginning of the attachment.

2. **All** offerors (large, non-profits, **AND** small businesses) shall use Attachment F (Small Business Participation Commitment Document (SBPCD)) to submit the following required information for evaluation of this factor:

- To demonstrate commitment to use small business concerns in the performance of this contract, identify by name the subcontractors that will be used to support each small business category, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSBs. Identify the type and complexity of product/service to be subcontracted, and the type of commitment (i.e., teaming agreement, joint venture agreement, mentor protegee agreement, letter of commitment, etc.) with each subcontractor.
  - If subcontractors are not identified by name, offerors shall provide a detailed explanation why subcontractors are not identified. If firm written commitments with SBs are not in place, offerors

shall provide an explanation and rationale on the ability to achieve the proposed participation. (See Attachment F, paragraph 5)

- If a LB offeror does not intend to subcontract, provide a **detailed explanation** why subcontracting would not result in efficient contract performance. SBs intending to 100% self-perform are not required to provide an explanation. (See Attachment F, paragraph 6)
- To demonstrate maximum practicable participation of small businesses, identify (**in terms of dollar value and percentage of the total contract value**) the offeror's proposed small business participation. The minimum required small business participation (i.e. work to be performed by small business as the prime contractor and/or work to be performed by small business subcontractors) is **20%**. Offerors who are not able to meet the minimum total small business participation requirement of **20%** (of the total contract value) shall provide a detailed explanation why the minimum total small business participation requirement cannot be achieved.
- Only complete Attachment F. Information provided in a different format and/or on a form created by the offeror will not be evaluated. Attachments or addendums to Attachment F will not be evaluated
- Large business offerors may achieve the minimum total small business participation requirement through subcontracting to small businesses.
- Small business offerors may achieve the minimum total small business participation requirement through their own performance/participation as a prime as well as through a joint venture, teaming arrangement, and/or subcontracting with other small business concerns.

(ii) Basis of Evaluation:

The Government will evaluate the likelihood of success in achieving the small business objectives of this acquisition based on the following:

1. The extent to which the offeror is able to demonstrate a history of supporting Government policies concerning the utilization of small business concerns, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSB and the success in achieving goals established by subcontracting plans on prior contracts. For projects submitted for Factor 1, Corporate Experience, that did not have established small business goals, consideration will be given to the utilization of the small business concerns and the degree of usage of small business relative to the total contract value. Historical Small Business Utilization will only be evaluated if performed by the offeror.

2. The extent to which the offeror has demonstrated an achievable commitment to use small businesses, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSB in the performance of this contract within the SBPCD.

- The minimum small business participation requirement, through work performed by the small business prime and/or subcontracting with small businesses, shall meet or exceed **20%** of the total contract value, unless the offeror provides a reasonable and well-documented explanation for why the minimum **20%** small business participation requirement cannot be achieved.
  - Offerors that demonstrate a commitment to providing maximum practical opportunity to small businesses may be rated higher.
  - Proposing less than **20%** total small business participation requirement may result in a Deficiency.
  - Offerors that do not demonstrate commitment to providing maximum practical opportunity to small businesses may result in a Deficiency.
- The SBPCD will be evaluated to determine the extent to which small business concerns are specifically identified by name and socioeconomic category in the document and the degree to which small business concerns, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSB will participate relative to the total contract value. The complexity and variety of the work small business concerns will perform and the degree of commitment to use named sources through formal teaming agreements, joint venture agreements, mentor protegee agreements, written/signed letters of /commitment, etc. will be evaluated to assess achievability of the commitment.

- The offeror may receive a Deficiency if firm commitments with subcontractors are not provided and the offeror fails to provide a detailed explanation for how the proposed small business participation requirement will be achieved.
- The offeror may be rated lower, if they fail to provide a detailed explanation for why subcontracting would not result in efficient contract performance. (Not applicable to SBs intending to 100% self-perform or LBs and non-profits who intend to subcontract).

#### 4. PROPOSAL REQUIREMENTS

##### 4.1 SITE VISIT

SITE WALK INFORMATION - Base Access Instructions for N4008526R0005 P-1112 B72 Resiliency Improvements

The purpose of this notice is to provide guidance on the upcoming site visit, which is scheduled for **19 March 2026 at 0900 EDT**.

**IF YOU REQUIRE A VISITOR PASS, PLEASE MAKE AN APPOINTMENT AT PASS & ID THROUGH THE QLESS APP AS QUICKLY AS POSSIBLE.**

This site walk is inside the Controlled Industrial Area (CIA) - if you have DBIDS but NOT CIA access please submit the information in step 1.b. for an escort pass for the day.

Required Steps for Visitors:

1) Return completed "DBIDS 5500 Form" for those who require access/badging to [jasonnghia.t.luong.civ@us.navy.mil](mailto:jasonnghia.t.luong.civ@us.navy.mil) and [deborah.a.peabody2.civ@us.navy.mil](mailto:deborah.a.peabody2.civ@us.navy.mil).

- All completed "DBIDS 5500 Form" must be submitted by **12 March 2026 at 1000 EDT**, to enable sufficient processing time.
- A completed "5500 DBIDS Form" for each company. If there are multiple subcontracting companies, a 5500 form is required for each company. **YOU CANNOT SUBMIT SUBCONTRACTORS UNDER YOUR COMPANY, PASS & ID WILL REJECT THEM.** If there are multiple individuals coming from a company, only one 5500 is required, however please include the attendee list on page two with the following information:
  - Full first name, last name, middle initial
  - Company name
  - State of Residence
  - US Citizenship (Y or N?)
- Since this site visit is inside the CIA, please ensure when emailing the 5500 you include for every person requiring a visitor pass their Full Name, State of Residence and if they are a US Citizen.

2) Each person must schedule an appointment with the Pass & ID office by using the "QLESS" app (<https://www.qless.com/L>)

- Attendees may get their paper badges made before the day of the site visit, but please note that the Pass & ID office will hold onto the paper badge until their escort arrives.
- While walk-in appointments may be available, dependency on availability is discouraged to ensure participation in the site visit is possible. Same day walk-in appointments are not guaranteed.

**NOTE: IF THE SITE VISIT DATE NEEDS TO BE CHANGED IT WILL BE ANNOUNCED VIA AMENDMENT**

3) Each person must complete the SF 5512 Form and hand carry this form, along with 2 forms of approved photo ID, with them to their scheduled appointment at the pass office.

- Due to new regulations 2 valid forms of ID are required. As of 04 NOV 2022, PNSY Pass and ID will no longer accept regular driver's licenses as an acceptable form of ID unless it is a REAL ID.** Most Maine and NH licenses are not compliant, unless they were obtained recently and the individual paid to have the REAL ID issued. Anyone expecting to be badged should have either a VALID US passport (not expired) and a regular license, OR, a REAL ID license, accompanied with a social security card or birth certificate.
- Naturalized or Derived Citizens expecting to be badged should have certification numbers and other related documents.
- Aliens expecting to be badged should have Registration Number, expiration date, and entry information.
- DO NOT email the 5512 form as it has personal identification information.** This should be hand carried by the visitor to their Pass & ID appointment.

Additional Site Visit information:

**1. PPE will be required to enter the CIA for the site visit** (i.e. hard hat, hearing protection, safety shoes, etc.)

**2. Contractors with base/CIA access can meet the site visit team between B242 and Berth 5.** However please submit the names of those attending the site visit to assist with coordination of the site visit.

Bottom Line:

Contractors need to identify the planned attendees without base/CIA access and immediately book an appointment at Pass & ID as well as submit the respective DBIDS request form by the suspense date. Contractors need to ensure attendees bring their completed 5512s with them in-hand and proper ID.

Lastly please submit to [jasonnghia.t.luong.civ@us.navy.mil](mailto:jasonnghia.t.luong.civ@us.navy.mil) and copying [deborah.a.peabody2.civ@us.navy.mil](mailto:deborah.a.peabody2.civ@us.navy.mil) a list of all attendees **NO LATER THAN 16 March 2026 at 1400 EDT** (if there are potential attendees, please just include them noting the same).

If there are any questions, please feel free to contact [jasonnghia.t.luong.civ@us.navy.mil](mailto:jasonnghia.t.luong.civ@us.navy.mil) and copy [deborah.a.peabody2.civ@us.navy.mil](mailto:deborah.a.peabody2.civ@us.navy.mil). If you plan on having contractors/subs attend who are not badged, please reach out sooner than later so we can appropriately arrange escorts and coordination.

#### 4.2 PROPOSAL SUBMISSION INSTRUCTIONS

In response to this request for proposal, the complete proposal shall include the Price Proposal and the Non-Price Factors Proposal, submitted in accordance with the Basis of Evaluation and Submittal Requirements for each Factor. Offerors shall submit an electronic copy of the proposal in accordance with the instructions below by the proposal due date.

Offerors shall only submit electronic proposals (.pdf format) in response to this solicitation. Only the PIEE Solicitation Module is authorized for the submission of electronic proposals in response to this solicitation. Electronic proposal submissions should be no larger than 1.9 GB per file. Offerors shall ensure that the Government has received the electronic proposal prior to the date and time specified. PIEE Solicitation Vendor Access Instructions are provided via Attachment B. Emailed submissions will not be accepted.

Offerors shall allow adequate time to upload files which may be slower for non-DoD users and to avoid other technical difficulties that may be encountered. Offerors are also responsible for submitting files in the format specified and consistent with requirements stated elsewhere in this solicitation. Files that cannot be opened or are otherwise missing the required content are the responsibility of the offeror.

The PIEE system will record the date and time of package submittal. The date and time of package submittal recorded in PIEE shall govern the timeliness of any proposal submission. **PROPOSALS SUBMITTED IN RESPONSE TO THIS REQUEST FOR PROPOSAL MUST BE RECEIVED NO LATER THAN THE DATE AND TIME SPECIFIED IN BLOCK 13A OF THE SF1442. Proposals not received by the time and date specified shall be treated in accordance with FAR 52.215-1 "Instruction to Offerors - Competitive Acquisitions" and may be rejected.**

Price information contained in the technical proposal will not be considered. Likewise, technical information contained in the price proposal will not be considered.

It is the sole responsibility of the Offeror to obtain the RFP files, along with any amendments, from Opportunities ([www.sam.gov](http://www.sam.gov)).

#### 4.3 PRE-PROPOSAL INQUIRIES (PPIS)

All inquiries must be submitted in writing and received by the Contract Specialist fourteen (14) calendar days prior to the solicitation closing date in order to permit adequate time to reply to the inquiry. There is no guarantee that PPIS submitted after the cut-off date will be answered before the solicitation closes. Submit all questions to James Godwin at [james.a.godwin41.civ@us.navy.mil](mailto:james.a.godwin41.civ@us.navy.mil) with the e-mail subject line "N4008526R0005 PPI {Company Name}". Additionally, all inquiries shall be submitted using the Pre-Proposal Inquiry Form (Attachment A). Do not submit the same inquiry more than once. Please verify that inquiries submitted by you on behalf of your subcontractors are not duplicates. A response will be published via an amendment to SAM.gov. The PPI Log Template (Attachment A) can be found on the SAM.gov website.

#### 4.4 CONTRACT OPPORTUNITIES

Amendments will be posted directly to SAM.gov under the solicitation number in Contract Opportunities. The drawings and specifications will be posted on SAM.gov under the Attachments section of this RFP. Additionally, other postings will be made to SAM, such as responses to PPI's, revised drawings, etc., under the Attachments section of the RFP. It is recommended contractors check SAM periodically to see if additional postings have been made. **It is the contractor's responsibility to check SAM for all postings.**

#### 5. INCORPORATION OF TECHNICAL PROPOSAL

The Contractor's technical proposal, including revisions and amendments, made prior to contract award and a copy of which is in the possession of both parties, will be incorporated into this contract upon award by reference with the same force and effect as if set forth in full text. All contractor personnel shall meet or exceed the qualification standards, experience levels and trade background set forth in the technical proposal.

In the event of an inconsistency between the provisions of this contract and the technical proposal, the inconsistency shall be resolved by giving precedence in the following order: (i) the contract (excluding the technical proposal), and then (ii) the technical proposal.

#### 6. ATTACHMENTS: WILL BE LOCATED ON CONTRACT OPPORTUNITIES

## Section 00 70 00 - Conditions of the Contract

### Additional Information/Notes

#### The following clauses were modified:

#### 52.219-1 Small Business Program Representations. (Deviation) Feb 2026 hereby reads as follows:

Small Business Program Representations (Feb 2026) (Deviation)

(a) *Definitions.* As used in this provision-

*Economically disadvantaged women-owned small business (EDWOSB) concern* means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

*HUBZone small business concern* means a small business concern that meets the requirements described in 13 CFR 126.200, is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) ( 13 CFR 126.103).

*Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program* means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

*Small business concern-*

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

*Small disadvantaged business concern* means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

*Women-owned small business (WOSB) concern eligible under the WOSB Program* (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 236210.

(2) The small business size standard is \$45,000,000.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations.*

(1) The offeror represents as part of its offer that-

(i) it ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [ \_\_\_\_\_  
\_\_\_\_\_The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_.]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small disadvantage business concern.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [ \_\_\_\_\_The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [ \_\_\_\_\_The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_.]

(5) *SDVOSB joint venture eligible under the SDVOSB Program.* [Complete only if the offeror is certified as a SDVOSB concern]. The offeror represents as part of its offer that it ☐ is, ☐ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [ \_\_\_\_\_The offeror shall enter the name and unique entity identifier of each party to the joint venture:\_\_\_\_.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that it ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [ \_\_\_\_\_The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) *Notice.* Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be-

(1) Punished by imposition of fine, imprisonment, or both;

(2) Subject to administrative remedies, including suspension and debarment; and

(3) Ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

## 52.219-28Postaward Small Business Program Rerepresentation. (Deviation)Feb 2026 hereby reads as follows:

### Postaward Small Business Program Rerepresentation (Feb 2026) (Deviation)

(a) *Definitions.* As used in this clause-

*Long-term contract* means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

*Small business concern-*

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support-table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under 236210 NAICS Code assigned to N4008526R0005 contract number.

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c).  The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c).  The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402.  The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .

(6) *HUBZone joint venture eligible under the HUBZone Program.* *[Complete only if the offeror is a HUBZone small business concern.]* The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c).  The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .

Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.  Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)



